Variance Form for Proposed Alternative Solution

This form in its entirety, including all supporting documentation, must be forwarded to:

Safety Codes Council
Administrator of Accreditation
500, 1405 Jasper Avenue NW
Edmonton, AB T5J 3N4

Email: accreditation@safetycodes.ab.ca

PART 1 – Applicant

All sections of Part 1 must be filled out in full by the **applicant** (owner and/or owner's representative) to request an alternative solution/variance to build, install, process or otherwise act in a manner that is not consistent with the provision of an applicable Code and/or Standard.

Section A: Applicant Information

Owner's Name
Owner's Representative
Mailing Address
Date of Request

Section B: Details of Proposed Alternative Solution

☐ Check this box if the Proposed Alternative Solution has been submitted to the Safety Codes Council for review for jurisdictional use.

Permit Number (if applicable)		
Legal description of property that this variance will apply to:		
Municipal Address		
Alberta Township Survey (ATS)	Lot	Block
	Plan	QTR
	SEC	TWP
	RGE	MER

Section C: Justification That Proposed Alternative Solution Will Meet or Exceed Prescriptive Code/Standard Article

Applicable Code or Standard

Attributions to Acceptable Solutions

Article(s)	Objective	Function	Intent statements

Section D: Supporting Documentation

Name of Supporting Documentation	Name of Individual/Professional/Professional Organization Responsible

Signatures and Disclosures

The collection of personal information is authorized under section 4(c) of the Protection of Privacy Act. This personal information will be used to review and assess the variance application, including verifying information provided.

By signing below, I understand that the information provided will be shared with the Safety Codes Council (SCC) in accordance with the municipality's Quality Management System agreement and section 13(1)(b) of the Protection of Privacy Act. Some of the non-personal information provided in this form may be published on the SCC website.

Owner's Signature	Date
OWNER'S NAME (PLEASE PRINT)	
Owner's Representative's Signature	Date
OWNER'S REPRESENTATIVE'S NAME (PLEASE PRINT)	

PART 2(a) – Acceptance of Proposed Alternative Solution

This portion to be completed by **Safety Codes Officer (SCO)** responsible for reviewing the variance form for proposed alternative solution and issuing the specific variance.

Section A: Reviewer Information

Date of Review	
Authority Having Jurisdiction	
Agency Reviewing the Proposed Variance (if applicable)	
Name of Safety Codes Officer Responsible for Reviewing the Variance	Discipline
	Certification Number
	Designation Number

Section B: Acceptance Of Proposed Alternative Solution

☐ I have reviewed the terms of the proposed variance/alternative solution as provided in Part 1. Based on the submitted information, the proposed alternative solution will provide approximately equivalent or greater safety performance to the provisions of the Code and/or Standard. A Variance is **issued.**

In issuing a Variance, the following conditions must also be met:

Safety Codes Officer Signature	Date

PART 2(b) – Refusal of Proposed Alternative Solution

This portion to be completed by **Safety Codes Officer (SCO)** responsible for reviewing the variance form for proposed alternative solution and refusing the specific variance.

Section A: Reviewer Information

Date of Review	
Authority Having Jurisdiction	
Agency Reviewing the Proposed Variance (if applicable)	
Name of Safety Codes Officer Responsible for Reviewing the Variance	Discipline
	Certification Number
	Designation Number

Section B: Refusal Of Proposed Alternative Solution

I have reviewed the terms of the proposed variance/alternative solution as provided in Part 1. This Variance is refused for the following reasons (check all that apply):

☐ Information provided in Part 1 is **incorrect.**

☐ Information provided in Part 1 does **NOT** provide sufficient or complete information for SCO to determine if proposed alternative solutions will provide equal or better performance to the provisions of the Code, Standard, and/or regulation.

☐ Based on information provided in Part 1, the proposed alternative solution(s) will **NOT** provide approximately equivalent or greater safety performance to the provisions of the Code and/or Standard.

Additional rationale and reasons for refusal:

Safety Codes Officer Signature	Date

This written refusal has been served to the applicant on in this format

Appeals Info

PART 3 – Option to Appeal Written Refusals

The applicant (owner and/or owner's representative), to whom Refusal of Proposed Alternative Solution applies, may appeal it to the Safety Codes Council (SCC) in conformance with SCC Bylaws. All appeals must be made within 30 days of the date the Refusal was served.

Section A: Reviewer Information

A request for an Appeal shall:

- be in writing, in the form of the Council's Notice of Appeal and signed by the appellant,
- contain a copy of Part 1 and 2(b) of Variance Form for Proposed Alternative Solution,
- contain a concise statement concerning the matter being appealed setting out the grounds for appeal,
- contain the name, address, telephone number, and email of the person appealing; and
- be accompanied by the appropriate fee set out in the Council fee schedule.

Note: The appeal process is not available to those applications that have been reviewed and refused by an Administrator of the Safety Codes Act.

Section B: Contact

Request for an Appeal shall be made to:

Safety Codes Council
Coordinator of Appeals
500, 1405 Jasper Avenue NW
Edmonton, AB T5J 3N4

Telephone: 780-413-0099 toll free 1-888-413-0099
Email: appeals@safetycodes.ab.ca
Website: safetycodes.ab.ca/council-information/appeals